

CHAPTER 40.

An Act to extend the Elementary School Teachers (Superannuation) Act, 1898, to Teachers serving in the Island of Jersey, and to service as a Teacher in that Island.

[6th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Extension of
61 & 62 Vict.
c. 57. to
service as a
teacher in
the Island of
Jersey.

1. Subject to the provisions of this Act, the Elementary School Teachers (Superannuation) Act, 1898 (in this Act referred to as the principal Act), shall apply to teachers serving in the Island of Jersey and to service as a teacher in that Island, as it applies to teachers serving in England or Scotland and to service as a teacher in England or Scotland.

Payment by
Island of
whole or
part of
superannua-
tion or
disablement
allowances.

2. Recorded service in the Island of Jersey shall not be reckoned as such service for the purpose of annual superannuation allowances or disablement allowances under the principal Act, unless provision is made and maintained to the satisfaction of the Treasury by the legislature of the Island—

- (i) for the grant and payment of any such allowances, in the case of a teacher the whole of whose recorded service has been service in the Island, by the Government of the Island out of Island Funds; and
- (ii) in the case of the grant of any such allowance to a teacher whose recorded service has been partly service in the Island and partly service elsewhere, for the payment by the Government of the Island out of Island Funds of a part of that allowance proportionate or assignable to the period of the recorded service in the Island.

Option of
existing
teachers to
accept Act.

3. Section five of the principal Act (which relates to the application of the Act to existing teachers) shall as respects any such teacher who has been serving in the Island of Jersey at any time after the commencement of the principal Act, and has not already accepted that Act, be read as if the period of twelve months after the commencement of this Act were substituted for the period of one year after the commencement of the principal Act as the maximum time to be prescribed within which the option to accept the principal Act may be exercised.

Supplemental
modifications.

4.—(1.) The power to grant an annual superannuation allowance or a disablement allowance under sections one and two of the principal Act shall be exercised in the case of a teacher the whole of whose recorded service has been service in the Island of Jersey, by or on behalf of the Government of Jersey, instead of by the Treasury, and any allowance granted under the power so exercised shall not be paid out of moneys provided by Parliament.

Paragraph (d) of subsection (2) of section one of the principal Act, and sections two, seven, and eight of that Act, shall accordingly be construed as if as respects the superannuation and disablement allowances of such teachers "the Government of Jersey" were substituted for "the Treasury," and "Island Funds" for "moneys provided by Parliament."

(2.) Section nine of the principal Act shall apply in the Island of Jersey as if the words "or in the Island of Jersey" were added at the end of the section.

(3.) Subsection three of section five of the principal Act shall be construed as if the words "or the legislature or Government of the Island of Jersey" were added after the word "Parliament."

(4.) Section eleven of the principal Act shall be construed as if the words "or as respects the Island of Jersey the corresponding law in force in that Island" were added at the end of the definition of "Education Code."

5. This Act may be cited as the *Elementary School Teachers Short title. Superannuation (Jersey) Act, 1900.*

CHAPTER 41.

An Act to provide for the alteration of the Local Government (Procedure of Councils) Order, 1899.

[6th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1.) The Local Government Board may, if they think fit, by Provisional Order confirmed by Parliament annul or vary either generally, or, on the application of the council of any particular county, as respects that county, any provision in the Local Government (Procedure of Councils) Order, 1899. Power to alter or annul provisions of Procedure of Councils Order, 1899.

(2.) Sections two hundred and fourteen and two hundred and fifteen of the Public Health Act, 1878, shall, with the necessary modifications, apply for the purpose of an Order under this Act. 41 & 42 Vict. c. 52.

2. This Act shall be construed as one with the Local Government (Ireland) Act, 1898, may be cited as the Local Government (Ireland) (No. 2) Act, 1900, and may be cited with the Local Government (Ireland) Acts, 1898 and 1900. Construction and short title. 61 & 62 Vict. c. 37.